

SENATE No. 2124

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to government efficiency.

PETITION OF:

NAME:

Julian Cyr

DISTRICT/ADDRESS:

Cape and Islands

SENATE No. 2124

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 2124) of Julian Cyr for legislation to create a behavioral science insights policy directive. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1988 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to government efficiency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6A of the General Laws is hereby amended by inserting after section 4A the
2 following new section:-

3 Section 4B. Behavioral science insights policy directive.

4 (a) Administrative agencies, independent agencies, and judicial administration are
5 encouraged to do all of the following:

6 (1) identify policies, programs, and operations where applying behavioral science insights
7 may yield substantial improvements in public welfare, program outcomes, and program cost
8 effectiveness;

(2) develop strategies for applying behavioral science insights to programs and, where possible, rigorously test and evaluate the impact of these insights; and

(3) strengthen governmental relationships with the research community to better use empirical findings from the behavioral sciences.

(b) In implementing the policy directives in subsection (a), agencies and administrators shall do all of the following:

(1) identify opportunities to help qualifying individuals, families, communities, and businesses access public programs and benefits by, as appropriate, streamlining processes that may otherwise limit or delay participation -- for example, removing administrative hurdles, shortening wait times, and simplifying forms;

(2) improve how information is presented to consumers, borrowers, program beneficiaries, and other individuals, whether as directly conveyed by the agency, or in setting standards for the presentation of information, by considering how the content, format, timing, and medium by which information is conveyed affects comprehension and action by individuals, as appropriate;

(3) identify programs that offer choices and carefully consider how the presentation and structure of those choices, including the order, number, and arrangement of options, can most effectively promote public welfare, as appropriate, giving particular consideration to the selection and setting of default options; and

(4) review elements of their policies and programs that are designed to encourage or make it easier for individuals to take specific actions, such as saving for retirement, resolving

30 legal issues, or completing education programs. In doing so, agencies shall consider how the
31 timing, frequency, presentation, and labeling of benefits, taxes, subsidies, and other incentives
32 can more effectively and efficiently promote those actions, as appropriate. Particular attention
33 should be paid to opportunities to use nonfinancial incentives.

34 (c) For policies with a regulatory component, agencies are encouraged to combine this
35 behavioral science insights policy directive with their ongoing review of existing significant
36 regulations to identify and reduce regulatory burdens, as appropriate and consistent with Access
37 to Justice Commission recommendations and the Best Practices for Administrative Agencies to
38 Enhance Administrative Justice.

39 (d) Agencies shall engage outside researchers to provide advice and policy guidance to
40 assist in developing policy objectives and rigorous evaluation of initiatives under this statute, as
41 appropriate. Criteria for researchers shall include an emphasis on rigorous, evidence-based
42 evaluation, including but not limited to randomized control trials, and expertise in behavioral
43 science and related disciplines.

44 (e) Nothing in this section shall be construed to impair or otherwise affect the authority
45 granted by law to any government entity.